

Court No. - 37

Case :- WRIT - C No. - 23161 of 2012

Petitioner :- Sant Swaroop

Respondent :- Dakhinanchal Vidyut Vitran Nigam Ltd. And
Another

Petitioner Counsel :- Rajesh Kumar Mishra, Anil Kumar Tiwari

Respondent Counsel :- Rajesh Tripathi

Hon'ble Sunil Ambwani, J.

Hon'ble Aditya Nath Mittal, J.

We have heard Shri Rajesh Kumar Mishra, learned counsel for the petitioner. Shri Rajesh Tripathi has accepted notice on behalf of the respondents.

It is alleged that the petitioner was sanctioned electricity connection of 7.5 KW in the year 2001. The connection was actually installed and energised in the year 2004. Since, thereafter, he has been regularly paying the bills, but that arrears have been shown to be due since the year 2001.

The petitioner has not annexed the representation, which he may have made to the Executive Engineer to correct the bills.

In the bills annexed to the writ petition, the Electricity Department has provided that if there is any dispute regarding the correctness of the bill, the petitioner may approach the Divisional Office and in case of any further grievance, he may contact Consumer Grievance Redressal Forum and may also contact Ombudsman (Vidyut Lokpal, Lucknow).

The petitioner has statutory alternative remedies of approaching the concerned Executive Engineer under Para 6.5 of the U.P. Electricity Supply Code, 2005, for redressal of his grievances.

The writ petition is accordingly **dismissed** with observation that if any complaint is made, it may be decided as provided under Para 6.5 (b) of the U.P. Electricity Supply Act, 2005 within 7 days of making the complaint on his depositing the amount equal to the sum claimed from him, or electricity charges calculated on the basis of average of electricity bills of preceding six months, whichever is less, before the due date of payment.

Order Date :- 11.5.2012

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